

		vaguely declares that Plaintiff “alleged conduct by Defendant that he perceived as discriminatory and retaliatory, among other things.” (ROA 91 ¶ 27.) In the context of the Court’s concerns that Plaintiff has “sold out” the PAGA claim in exchange for a large individual settlement, this is insufficient. Please explain the factual basis for these claims, and please explain any defenses Defendant would intend to raise. Similarly, at points 2.c-2.f of the prior minute order, the Court asked for specific information about several of the predicate Labor Code violations. Rather than responding directly to these requests, counsel provides a vague, general summary of these claims. (ROA 91 ¶¶ 12-14.) Again, in the context of the Court’s concerns about the PAGA settlement, this is insufficient. Why not simply provide the specific information requested? As things currently stand, the Court cannot discharge its duties under <i>Moniz</i>.
3	Cayetano vs. Meiji Dining Corporation 2024-01449313	Plaintiff’s Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to October 9, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before September 30, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 13. Because a portion of the settlement payments are considered wages owed, the Court’s strong preference is for uncashed checks to be redirected to the Controller’s Unclaimed Property Fund. If the parties nevertheless wish to use a cy pres, the parties and their counsel must disclose any connections they have to the chosen cy pres. 14. Did counsel interview anyone other than Plaintiff to value the non-record claims? 15. The FAC pleads that Plaintiff is a current employee. Plaintiff’s declaration in support of the motion mentions her start date, but not any date of separation. How does Plaintiff have standing to bring and settle a waiting time claim, or a PAGA claim predicated on waiting time violations? (See Lab. Code § 2699(c)(1) (PAGA plaintiff

		must have personally suffered the violations complained of).) 16. There were apparently arbitration agreements covering some portion of the class. Was Plaintiff subject to such an agreement? Did Defendants turn over sample agreements? If so, does counsel believe the agreements were enforceable? 17. Counsel discounts the settlement value because of the possibility that Defendants would conduct a <i>Pick Up Stix</i> campaign. Was this in fact threatened by Defendants or their counsel, or did Plaintiff’s counsel simply consider this as an always-possible risk? 18. With respect to claims for violations of Labor Code §§ 226(c) and 1198.5, what did the evidence show about how many employees had requested copies of their records but been denied? 19. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 20. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 21. At final approval, Plaintiff is to provide a declaration addressing the enhancement factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785, including the amount of time and effort spent on the litigation. 22. At final approval, the administrator is to provide a high, low and average for individual settlement payments, along with Plaintiff’s individual payout. <i>As to the Notice:</i> 5. Please omit the objection form (but include the opt-out and workweek dispute forms).
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4	Robles vs. Bally Americans Inc. 2024-01417922	Plaintiff’s Motion to Enforce Settlement VACATED
5	Murillo vs. Merical, LLC 2026-01549540	Defendant's Motion to Compel Arbitration Defendant Merical, LLC’s motion to compel arbitration of Plaintiff Cesar Murillo’s claims is GRANTED. Pursuant to the 2016 arbitration agreement between the parties, Murillo is ordered to arbitrate his claims on an individual basis. His class claims are dismissed without prejudice. An arbitration review conference will take place on May 12, 2027 at 8:30 a.m. EVIDENTIARY MATTERS I. <u>Plaintiff’s Evidentiary Objections</u> A. <u>Declaration of Nicole Arvizu</u> Objection No. 1 is overruled. Objection No. 2 is sustained insofar as Arvizu testifies that Plaintiff “accepted” or “agreed to” the purported agreement and is otherwise overruled. B. <u>Declaration of Martin Zhao</u>